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United States District Court, N.D. California

MURPHY
v.
LINKEDIN CORPORATION

Case No. 25-cv-04036-EKL

Decided March 30, 2026

Opinion of the court

Attorneys and Law Firms Jennifer Anne Beckage, Pro Hac Vice, Lee Merreot, Pro Hac Vice, The Beckage Firm PLLC, Buffalo, NY, Juliana Cipolla, Pro Hac Vice, Lancaster, NY, Jennifer M. Oliver, Buchanan Ingersoll & Rooney LLP, San Diego, CA, for Plaintiffs. Ambika Kumar, Pro Hac Vice, Davis Wright Tremaine LLP, Seattle, WA, Haley B. Zoffer, Davis Wright Tremaine LLP, Los Angeles, CA, for Defendant

ORDER GRANTING MOTION TO DISMISS Re: Dkt. No. 25 Eumi K. Lee, United States District Judge Plaintiffs Michael Murphy and Laurie Murphy are the victims of “a sophisticated fraudulent investment scheme.” Compl. ¶ 1, ECF No. 1. Two anonymous fraudsters – not parties here – approached Mr. Murphy through private messages sent via LinkedIn, an online professional networking platform. Id. ¶¶ 17, 45, 67. After building rapport with Mr. Murphy, the fraudsters offered to teach him how to make lucrative financial investments. Id. ¶¶ 71-74, 84, 88-89. LinkedIn removed the fraudsters' profiles, but the fraudsters continued to lure Mr. Murphy via WhatsApp, a messaging platform that is independent from LinkedIn. Id. ¶¶ 75, 91. Believing that these investment opportunities were legitimate, Mr. Murphy transferred significant sums to accounts that were controlled by the fraudsters. Id. ¶¶ 47-48, 81-82, 96, 99

Plaintiffs assert claims against LinkedIn for: (1) negligence; (2) gross negligence; (3) violation of the California Consumer Legal Remedies Act (“CLRA”); (4) breach of contract; (5) violation of the California False Advertising Law (“FAL”); and (6) product liability. Id. ¶ 4. LinkedIn moves to dismiss. Mot. to Dismiss, ECF No. 25. The Court reviewed the parties' briefs and relevant authority and heard argument on the motion. Because Plaintiffs' claims are barred by Section 230 of the Communications Decency Act, 47 U.S.C. § 230, the motion is GRANTED.¹ Under Section 230 of the Communications Decency Act, “[n]o provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.” 47 U.S.C. § 230(c)(1). “No cause of action may be brought and no liability may be imposed under any State or local law that is inconsistent with” Section 230. Id. § 230(e)(3). Thus, Section 230 protects from liability “(1) a provider or user of an interactive computer service (2) whom a plaintiff seeks to treat, under a state law cause of action, as a publisher or speaker (3) of information provided by another information content provider.” *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1100-01 (9th Cir. 2009). Here, “Plaintiffs acknowledge that LinkedIn is a provider of an interactive computer service, so the first prong is met.” Opp. at 17, ECF No. 26. The Court therefore focuses on the second and third prongs. Taken together, the second and third prongs of the *Barnes* analysis require courts to “examine each claim to determine whether a plaintiff's theory of liability would treat a defendant as a publisher or speaker of third-party content.” *Calise v. Meta Platforms, Inc.*,

103 F.4th 732, 740 (9th Cir. 2024) (citation modified). The second prong is satisfied if the plaintiff's claim – however styled – asserts that the defendant “breached a duty that derives from the defendant's status or conduct as a publisher or speaker.” *Doe v. Grindr Inc.*, 128 F.4th 1148, 1151 (9th Cir. 2025) (citation modified). “If the duty does not derive from such status or conduct, but rather from another source, then § 230 does not immunize the defendant.” *Id.* The third prong is satisfied if the plaintiff's claim targets “content provided by another.” *Barnes*, 570 F.3d at 1102. The third prong is not satisfied, and the defendant loses its immunity, if the claim seeks to treat the defendant as the publisher or speaker of its own content – “or content that

it created or developed in whole or in part.” *Grindr*, 128 F.4th at 1151 (quoting *Calise*, 103 F.4th at 744). Here, the second and third prongs are met because each of Plaintiffs' claims “necessarily implicates [LinkedIn's] role as a publisher of third-party content.” *Id.* at 1152. Fundamentally, Plaintiffs' claims for negligence, gross negligence, and product liability are premised on a purported duty to “monitor” users, “restrict the accounts of fraudulent actors,” and to suppress “fraudulent activities” by users of LinkedIn's platform. Compl. ¶¶ 159-163, 166, 183, 225-227. These claims “necessarily implicate” LinkedIn's role as a publisher of third-party content because “discharging the alleged duty would require [LinkedIn] to monitor third-party content and prevent” communications between fraudsters and legitimate LinkedIn users. *Grindr*, 128 F.4th at 1153. Nor can Plaintiffs sue LinkedIn for breaching a “duty to warn.” Compl. ¶¶ 166, 170-177. LinkedIn's “role as a publisher of third-party content does not give it a duty to warn users of ‘a general possibility of harm’ resulting from” using LinkedIn's services. *Grindr*, 128 F.4th at 1154 (quoting *Est. of Bride v. Yolo Techs., Inc.*, 112 F.4th 1168, 1181 (9th Cir. 2024)); cf. *Doe v. Internet Brands, Inc.*, 824 F.3d 846, 848-52 (9th Cir. 2015) (holding that Section 230 did not bar failure-to-warn claim where defendant had actual knowledge of specific criminal conduct from an independent source, and thus the claim had “nothing to do with [defendant's] efforts, or lack thereof, to edit, monitor, or remove user generated content”). Plaintiffs argue that their claims are not based on LinkedIn's role as publisher, but rather its role “as a product manufacturer and developer of defective algorithms” that facilitated communications between fraudsters and Plaintiffs. Opp. at 10. But the Ninth Circuit has repeatedly upheld dismissal of negligence and product liability claims framed in the same way. See *Grindr*, 128 F.4th at 1152-53 (affirming dismissal of claims for negligence, defective design, and defective manufacturing premised on “a duty not to design” products that facilitated “matching users” with predators); *Dyroff v. Ultimate Software Grp.*, 934 F.3d 1093, 1098 (9th Cir. 2019) (Defendant acted as a publisher of third-party content by using “features and functions, including algorithms, to analyze user posts,” and by “recommending user groups and sending email notifications.”). Plaintiffs also argue that they seek to hold LinkedIn liable for developing content, Mot. at 17-19, but Plaintiffs do

not plausibly allege that LinkedIn created or developed the fraudsters' content “in whole or in part.” *Grindr*, 128 F.4th at 1151. Plaintiffs rely on *Fair Housing Council of San Fernando Valley v. Roommates.com LLC*, in which the Ninth Circuit held that the defendant may be sued based on content that it forced users to provide as a condition of using its service. 521 F.3d 1157, 1165-66 (9th Cir. 2008) (en banc). But the Ninth Circuit also held that the defendant could not be sued for content “developed entirely by [a] malevolent user” merely because the defendant provided “neutral tools.” *Id.* at 1171-72. Here, Plaintiffs' claims are premised on LinkedIn's neutral tools for connecting users, not on content that LinkedIn created or required users to provide as a condition of using its services. Indeed, LinkedIn expressly informs users that they “have choices about the information” on their profiles, and that users “don't have to post or upload personal data” that may make them targets of fraud. Compl. Ex. A, LinkedIn

Privacy Policy § 1.1; see also *Dyroff*, 934 F.3d at 1099 (affirming dismissal due to lack of allegations that defendant “required users to post specific content, made suggestions regarding the content of potential user posts, or contributed to making unlawful or objectionable user posts”); cf. *Lemmon v. Snap, Inc.*, 995 F.3d 1085, 1093 (9th Cir. 2021) (holding that Section 230 did not apply because defendant “indisputably designed” a harmful product feature). Plaintiffs’ remaining claims for breach of contract and for violations of the CLRA and FAL are also barred by Section 230. These claims rest on certain terms and representations purportedly made in LinkedIn’s User Agreement and Privacy Policy. See Compl. ¶¶ 197-198, 204, 206, 212-222. These claims are premised on the same duties discussed above – duties to monitor, to design products in a different manner, and to warn – that fundamentally seek to hold LinkedIn liable for content created by the fraudsters. Styling these claims as different legal theories does not remove them from Section 230’s scope. See *Barnes*, 570 F.3d at 1102-03 (explaining that “a plaintiff cannot sue someone for publishing third-party content simply by changing the name of the theory”); see also *Rogozinski v. Reddit, Inc.*, No. 23-cv-00686-MMC, 2024 WL 150727, at (N.D. Cal. Jan. 12, 2024) (collecting cases holding that Section 230 may bar breach of contract claims). Under some circumstances, claims for breach of contract and similar representation-based claims are not barred by Section 230, but those circumstances are not present here. In *Barnes*, the Ninth Circuit explained that a defendant may

effectively waive Section 230’s protections by making “a promise with the constructive intent that it be enforceable.” 570 F.3d at 1108-09. But the Ninth Circuit also held that “a court cannot simply infer a promise from an attempt to de-publish” content – i.e., “a general monitoring policy, or even an attempt to help a particular person ... does not suffice for contract liability.” *Id.* at 1108. To avoid contract liability, a provider of an interactive computer service like LinkedIn “need only disclaim any intention to be bound.” *Id.* Here, Plaintiffs seek to hold LinkedIn liable solely based on its general monitoring policy and aspirations to remove fraudulent users from its platform. See Compl. Ex. B, LinkedIn User Agreement §§ 3.4, 8.1, 8.2. Moreover, LinkedIn expressly disclaims liability by notifying users that they “may encounter content or information that might be inaccurate, incomplete, delayed, misleading, illegal, offensive, or otherwise harmful,” and that LinkedIn “generally does not review content provided by [its] Members or others.” *Id.* § 3.3; cf. *Calise*, 103 F.4th at 736, 743 (finding that Section 230 did not apply where defendant promised to combat harmful conduct). Thus, Section 230 bars these claims as well

banc). However, the Court may dismiss Plaintiffs’ claims with prejudice if the amended complaint fails to plausibly state a claim. See *Zucco Partners, LLC v. Digimarc Corp.*, 552 F.3d 981, 1007 (9th Cir. 2009) (holding that failure to correct pleading deficiencies after dismissal is a “strong indication” that further amendment would be futile); see also *Salameh v. Tarsadia Hotel*, 726 F.3d 1124, 1133 (9th Cir. 2013) (“A district court’s discretion to deny leave to amend is ‘particularly broad’ where the plaintiff has previously amended.” (quoting *Sisseton-Wahpeton Sioux Tribe v. United States*, 90 F.3d 351, 355 (9th Cir. 1996))). In its motion to dismiss, LinkedIn raised additional grounds for dismissal. The Court does not reach these issues because the Section 230 defense discussed above was dispositive, but Plaintiffs should consider these issues when amending the complaint

In sum, Section 230 bars Plaintiffs’ claims in full. Because this is the Court’s first ruling on the legal sufficiency of Plaintiffs’ allegations, dismissal is with leave to amend. See *Lopez v. Smith*, 203 F.3d 1122, 1127 (9th Cir. 2000) (en